



File No.: EXP202310848

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 15, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LVMH IBERIA, S.L. (hereinafter, LVMH IBERIA), through the agreement that is transcribed:

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File No.: EXP202310848

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 10, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to LVMH IBERIA, S.L., with NIF B81733503 (hereinafter, LVMH IBERIA).

The facts brought to the attention of this Authority are as follows:

The complainant states that she worked for (...) at the company LVMH IBERIA S.L., in a store located in ***LOCALIDAD.1.

She claims that during her employment, she had to use her personal mobile phone at the request and demand of the company, while waiting for a corporate device that the company never provided. She asserts that such provision did occur for other employees who joined after her.

She states that on (...), the date her vacation began, she left several WhatsApp groups, having previously notified all store managers verbally and via email.

She claims that on June 5, 2023, on her day off, the ***POSITION.1 of the store (A.A.A.) added her personal device number to the WhatsApp group named "GROUP.1," without prior notice or communication regarding this, and that on June 28, 2023, the same person removed the complainant's personal device number from the aforementioned WhatsApp group upon her dismissal from the company.

Along with her submission, she provides a copy of the email sent by the complainant on May 11, 2023, to several recipients with the domain louisvuitton.com, including A.A.A.: ***EMAIL.1., in which she communicates her intention not to use her personal mobile phone for work matters anymore, except for clients who already had her number. In this email, the complainant indicated that "I hope to have the company phone available soon" and announced that "I will leave the groups at the end of my shift on Friday."

She also provides several screenshots of the WhatsApp group named "GROUP.1," created on November 6, 2014, to which the complainant was added on June 5, 2023, as stated by the complainant, by the user A.A.A..

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to LVMH IBERIA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), via electronic notification, was received on August 2, 2023, as stated in the certificate in the file.

On August 31, 2023, a response letter from LVMH IBERIA was received by this Agency indicating, regarding the facts subject to the complaint, that the company maintained a protective stance at all times.

It states that this stance is clear when reviewing the email dated May 11, 2023. It considers that in this

email, the complainant does not request, despite what is stated in the complaint, to be removed from the company's WhatsApp groups. She literally announced that she was starting her vacation (...) and that she would then leave those groups (in addition to notifying that she wished to continue using her personal mobile for work purposes regarding existing clients and for location in the store, without excluding the WhatsApp groups). It asserts that the company scrupulously respected the complainant's non-participation in those groups throughout her vacation period, which reveals the rigor with which the company wished to respect her privacy at all times.

It states that the complainant did not request a permanent removal but only expressed her intention to leave and not participate in those groups during her vacation, something to which the company not only agreed but "secured" by allowing a temporary leave from the groups during that period.

It understands that the company has always adopted the most respectful solution for the complainant's privacy regarding her requests, namely, when it supported the leave.

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temporal of the company's WhatsApp groups even without her having expressly requested it, when she respected her intention not to participate in them during her vacation, when she was reintegrated into them only upon her return from said vacation, and, finally, being removed immediately and definitively from said groups when she ceased to be an employee of the company.

It considers that the company's practice to date in this matter has been prudent and protective since the WhatsApp groups only include employees of the company, without admitting any third parties, and that the personal data of the members that are subject to necessary processing refer exclusively to the names and surnames of the members and their mobile numbers, as well as their involvement in certain tasks and projects of the company, that is, to the minimum indispensable.

It states that the justification for the establishment of such groups is the nature of the company's operations, being the most effective and least intrusive way to organize work and fulfill the labor obligations of the company and employees.

It explains that, in general, the members of such groups use their ICON mobile devices provided by the company with special security features and that, considering that these devices may not be available at a given moment (whether due to theft, loss, breakdown, or supply issues) and that, being a work tool, the employee may not be able to fulfill their labor obligations or exercise their labor rights adequately, the possibility of using, exceptionally and temporarily, their personal mobile to participate in one of those company WhatsApp groups has been allowed until now.

However, it indicates that in order to eliminate any doubt in the future regarding the criteria and purpose of the company when applying this practice, it has been decided:

- (1) To draft and approve during the month of September 2023 a specific written protocol, through its Data Protection Delegate, that expressly reflects this good practice, with the variation noted below, and
- (2) To prohibit with immediate effect, starting from September 1, 2023, the participation of its employees in the company WhatsApp groups as long as they do not have an operational ICON device, even (a) if they have expressly requested to be included or re-included in said groups using their personal mobiles and/or (b) if the ICON mobile device has been stolen, lost, or is under repair or unavailable for any reason. The verification of this measure is straightforward as the company possesses the list of all ICON mobiles used by its employees, and the communications manager will check this weekly against the list of members of the company WhatsApp groups.

THIRD: On September 29, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to dismiss the claim.

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The resolution was notified to the claiming party on October 25, 2023, as evidenced in the file.

FOURTH: On November 3, 2023, the claiming party filed a discretionary appeal for reconsideration, through the Electronic Registry of the AEPD, against the resolution issued in file EXP202310848, in which, in summary, they expressed their disagreement with the contested resolution, requesting that the initial complaint submitted to the AEPD be admitted for processing.

FIFTH: On January 23, 2024, in accordance with the provisions of Article 118 of the LPACAP, the notification of the hearing procedure was carried out to the claimed party, for the purpose of allowing them to submit allegations and present the documents and evidence they deemed appropriate, which was verified by a response letter dated February 2, 2024.

In said letter, they first state that the company wishes to ratify and fully confirm the content of their previous letter of allegations dated August 31, 2023.

They understand, however, that it is important to highlight how the claimant has acknowledged in their two letters the truthfulness and accuracy of the company's allegations.

They assert that the claimant has expressly confirmed that the applicable regime for the corporate use of WhatsApp was based on corporate ICON phones and was subject to strict criteria regarding who could use the system and for what purposes.

They consider that alleging that the company imposed something against their consent goes directly against the actual facts that B.B.B. has substantiated beyond any reasonable doubt with the evidence presented by herself.

Finally, the company makes no comments regarding the new facts or elements introduced by the claimant in their appeal, but not included in the original complaint, which they therefore consider legally inadmissible.

They understand, therefore, that it is appropriate for the AEPD to dismiss the appeal for reconsideration submitted.

SIXTH: On April 16, 2024, the Director of the Spanish Agency for Data Protection resolved to uphold the appeal for reconsideration filed against the resolution of this Agency issued on September 29, 2023, and to admit the complaint filed in accordance with the provisions of Article 65 of the LOPDGDD. In the reasoning for the acceptance of the appeal, the following was indicated:

The claimed party has also not substantiated a lawful basis justifying the use of employees' personal numbers for their inclusion in a WhatsApp group, with the alleged impossibility of obtaining corporate devices compatible with this application not being sufficiently justified by the claimed party. This applies both to the processing carried out on the data of the claiming party and to the processing that continues to be carried out on current employees who are not provided with corporate devices.

SEVENTH: According to the report obtained from the AXESOR tool, the entity LVMH IBERIA is a large company, established in 1997, with a business volume of €541,845,000 in 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After that period, it will expire, and consequently, the file of actions will be archived, in

accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4 of the GDPR, in its paragraphs 1, 2, 7, and 11, defines:

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“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

“2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction;

“7) ‘data controller’ or ‘controller’ means: ‘the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States.’

According to the known facts, there is processing by the responding party of, among others and as far as this is concerned, the personal mobile phone. Such processing is carried out by the responding party in its capacity as controller as it is the one who defines the purposes and means of processing in accordance with the provisions of Article 4.7 of the GDPR.

IV

Unfulfilled obligation. Lawfulness of processing

The GDPR requires that the processing of personal data be lawful (Article 5.1.a), a principle that is developed in Article 6, the first paragraph of which states that processing shall be lawful only if at least one of the circumstances listed applies.

Thus, Article 6 of the GDPR under the heading “Lawfulness of processing” specifies in its paragraph 1 the cases in which the processing of third-party data is considered lawful:

“1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or

by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject requiring protection of personal data, particularly when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that

"For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

The documentation in the file provides clear indications that the respondent used the personal number of the claimant's mobile device to include them in a WhatsApp group called "GRUPO.1," without any evidence that the employee, here the claimant, gave their consent.

There is also no evidence of any other legal basis that legitimizes the processing carried out.

Thus, despite what the respondent stated in response to the actions taken, regarding the email sent by the claimant dated May 11, 2023, in which the claimant does not request, contrary to what was asserted in the complaint, to be removed as such from the company's WhatsApp groups. It literally announced that they were starting their vacation the next day (Friday) and that they would then leave those groups (in addition to notifying that they wished to continue using their personal mobile for work purposes regarding existing client matters and for plant location, without excluding the WhatsApp groups), we must recall the literalness of that communication (the underlining is from this AEPD):

"The reason for this email, as I have discussed with some of you personally, I start my vacation on Saturday and will no longer be using my personal mobile for work matters as I have until now due to the delay of ICON. I hope to soon have the company mobile available, so for the moment I will continue to be in contact with my mobile with the clients I already have, but without giving my contact to new clients and I will take it with me to be available in the plant in case I need to be contacted, I will leave the groups at the end of my workday on Friday."

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It is significant to highlight that the claimant expressly indicated her refusal to continue using her personal mobile phone for work-related matters; however, despite this, on June 5, just days later, the claimant's personal mobile phone was again used to add her to the WhatsApp group organized among the employees of the respondent.

On the other hand, in the document prepared by LVMH IBERIA in response to the complaint filed, it states, "to prohibit with immediate effect, starting from September 1, 2023, the participation of its employees in company WhatsApp groups as long as they do not have an operational ICON terminal." It clarifies that the members of such groups use ICON mobile terminals provided by the company with special security features.

This decision explicitly reflects a good practice but does not take into account that the claimant had not given her consent to LVMH IBERIA for communications via WhatsApp, as previously indicated. It also does not consider other possibilities.

The lack of diligence displayed by the respondent in fulfilling the obligations imposed by personal data protection regulations is, therefore, evident, given that in the circumstance where the ICON mobile terminals provided by the company may not be available at a given moment (whether due to theft, loss, breakdown, or supply issues) and that, being a work tool, the employee may not fulfill her work obligations, the company opts to add the employee's mobile phone to a WhatsApp group.

A diligent compliance with the principle of lawfulness in the processing of third-party data requires that

the data controller is in a position to prove it (principle of proactive responsibility), which, in relation to the analyzed case, means that it must be able to demonstrate that the employee provided her consent or that there was another legitimizing basis for the processing.

Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to LVMH IBERIA, for violation of the previously transcribed article.

V

Classification of the infringement of Article 6.1 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, according to paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

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For its part, the LOPDGDD in its article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute offenses."

For the sole purpose of the statute of limitations, article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year statute of limitations:

b) The processing of personal data without any of the conditions for lawful processing established in article 6 of Regulation (EU) 2016/679 being met.

VI

Proposal for sanction for the infringement of article 6 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under article 40 or to certification mechanisms approved under article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In the present case, considering the severity of the possible infringement, particularly regarding the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of article 83.1 of the GDPR. To ensure these principles, the turnover of LVMH IBERIA, S.L. (541,845,000 euros in the year 2023) is considered in advance.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

In advance, it is estimated that the following circumstances are present:

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Intentionality/ Negligence in the infringement (Article 83.2, letter b), of the GDPR):

In this regard, it should be noted that the infringement affects a basic principle of the processing of personal data, which is that such processing has a legal basis. In the present case, it is also noted that, despite the complainant explicitly expressing their desire not to continue using their personal phone for work-related matters, it was used again for that purpose. It is also relevant to understand the application of this circumstance that, having established means that did not involve the use of this personal information, such as in this case the use of corporate phones called ICON, the complainant's personal phone was used.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the

infringement committed, by violating what is established in Article 6.1 of the GDPR, in the case analyzed in this sanctioning procedure agreement, allows for an initial administrative fine of 70,000.00 euros to be set.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 6.1 of the GDPR, in accordance with what is established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe..."

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, the resolution adopted may require LVHM IBERIA to adopt the following measures within one month from the date of effectiveness of the resolution concluding this procedure:

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- To demonstrate the adoption of the necessary measures to ensure compliance with the provisions of Article 6.1 of the GDPR, in the processing of personal data it carries out.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could motivate such conduct to open a further administrative sanctioning procedure.

It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the pertinent measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against LVHM IBERIA, S.L., with NIF B81733503,

- for the presumed infringement of Article 6.1 of the GDPR, classified in accordance with the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1.b) of the LOPDGDD.

SECOND: TO APPOINT C.C.C. as instructor and D.D.D. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General

Sub-Directorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure.
FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of 70,000.00 euros, without prejudice to what results from the instruction.
FIFTH: TO NOTIFY this agreement to LVHM IBERIA, S.L., with NIF B81733503, granting it a hearing period of ten working days to submit any allegations and present the evidence it deems appropriate. In its written submission of

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The allegations must provide their NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 56,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 56,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 42,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in the event of opting for either of them, you must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (56,000.00 euros or 42,000.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection, at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Likewise, you must send the proof of deposit to the General Subdirectorate of Inspection along with the communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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SECOND: On May 1, 2025, LVMH IBERIA proceeded to pay the sanction in the amount of 42,000.00 euros making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at €42,000.00 and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, LVMH IBERIA has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of €70,000.00.

After LVMH IBERIA, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in a final amount of €42,000.00. The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or waiver of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202310848, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER LVMH IBERIA, S.L. to notify the Agency within 1 month from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to LVMH IBERIA, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or waiver of any action or administrative appeal, this resolution will be final in the administrative route and fully enforceable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative process may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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